

On March 11, 2026, Plaintiff's counsel thanked Defendant's counsel for providing the supplemental responses, but informed Defendant's counsel that they do not resolve all the issues raised in Plaintiff's original meet and confer correspondence. Additionally, Plaintiff's counsel stated that she had not received availability for a telephonic meet and confer, nor had she received a meet and confer correspondence from Defendant in response to Plaintiff's original letter sent on March 2, 2026. (Id., ¶9 Ex. 5.) On April 1, 2026, Plaintiff's counsel received a meet and confer correspondence from Defendant's counsel stating that all of Defendant's responses to Plaintiff's requests for production were proper, and that it would not supplement any further responses besides Nos. 14 and 16, which were already supplemented.

After Plaintiff's counsel reiterated her position in writing, once again, for Defendant's counsel via email, the parties' counsel's telephonically met and conferred to discuss Defendant's discovery responses on April 14, 2026. Further, the parties agreed to continue Plaintiff's Motion to Compel Further Responses deadlines to April 17, 2026. On April 14, 2026, the parties met and conferred telephonically, and Defendant stated that it would let Plaintiff's counsel know what responses, if any, it would supplement, and that Plaintiff's Motion to Compel Further Responses deadline would be continued until April 24, 2026.

On March 17, 2026, Defendant stated that it would not supplement any of the Requests for Production of Documents at issue but would supplement some of its responses to Plaintiff's Special Interrogatories and Requests for Admission, Set One. That same day, Plaintiff's counsel asked if Defendant could provide any supplemental responses by April 27, 2026, and if the parties could extend Plaintiff's Motion to Compel Further deadlines to May 6, 2026. Despite multiple follow-ups from Plaintiff's counsel, Defendant failed to respond to this correspondence and has failed to provide any further supplemental discovery responses. (Id. ¶11, Ex. 7, 8.)

Here, as noted in the Opposition, the initial March 2, 2026 meet and confer letter only addressed responses to RFP Nos. 14 and 16. Supplemental responses were served. However, as noted in the Opposition, Plaintiff did not meet and confer as to requests Nos. 1-9 and 15.

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